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No. 19–8360. *PARRA-INTERIAN v. OBENLAND*. C. A. 9th Cir. Certiorari denied.

No. 19–8369. *HOSKINS v. GE AVIATION*. C. A. 5th Cir. Certiorari denied. Reported below: 803 Fed. Appx. 740.

No. 19–8404. *GITTENS v. KELLY, JUDGE, COURT OF COMMON PLEAS OF PENNSYLVANIA, ERIE COUNTY, ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 790 Fed. Appx. 439.

No. 19–8413. *POPE v. DUNN, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS*. C. A. 11th Cir. Certiorari denied.

No. 19–8445. *CURRY v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 792 Fed. Appx. 267.

No. 19–8459. *BECKER v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 762 Fed. Appx. 668.

No. 19–8474. *THOMAS v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 794 Fed. Appx. 283.

No. 19–8477. *KENDRICK v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–8493. *STINSON v. HENDRIX, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 19–8503. *WILLIAMS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 793 Fed. Appx. 321.

No. 19–8504. *ANTONIO GARCIA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 801 Fed. Appx. 525.

No. 19–8508. *VILLAR v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 792 Fed. Appx. 764.

No. 19–8509. *GONZALES v. CALIFORNIA*. Ct. App. Cal., 1st App. Dist., Div. 5. Certiorari denied. Reported below: 42 Cal. App. 5th 1144, 256 Cal. Rptr. 3d 325.

No. 19–8510. *GARCIA TORRES v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 267.

No. 19–8512. *MHLANGA v. HICKS*. C. A. 6th Cir. Certiorari denied.

No. 19–8513. *CATANO LOPEZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 794 Fed. Appx. 431.

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No. 19–8515. *MUNDAY v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 798 Fed. Appx. 566.

No. 19–8530. *CLARK v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 934 F. 3d 843.

No. 19–8535. *JOHNSON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 805 Fed. Appx. 740.

No. 19–8537. *SU v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 797 Fed. Appx. 349.

No. 19–8543. *BURDICK v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 789 Fed. Appx. 886.

No. 19–8544. *CARTER v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 794 Fed. Appx. 554.

No. 19–8546. *ANNAMALAI ET AL. v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 819.

No. 19–8558. *HARDMAN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–1020. *BIKUNDI v. UNITED STATES*. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 926 F. 3d 761.

No. 19–1031. *CAPRON ET AL. v. OFFICE OF THE ATTORNEY GENERAL OF THE COMMONWEALTH OF MASSACHUSETTS ET AL.* C. A. 1st Cir. Certiorari denied. JUSTICE BREYER took no part in the consideration or decision of this petition. Reported below: 944 F. 3d 9.

No. 19–1051. *KANSAS v. BOETTGER* (Reported below: 310 Kan. 800, 450 P. 3d 805); and *KANSAS v. JOHNSON* (310 Kan. 835, 450 P. 3d 790). Sup. Ct. Kan. Motion of respondents for leave to proceed *in forma pauperis* granted. Certiorari denied.

JUSTICE THOMAS, dissenting.

Kansas asks us to decide whether the First Amendment prohibits States from criminalizing threats to “[c]ommit violence . . . in reckless disregard of the risk of causing . . . fear.” Kan. Stat. Ann. §21–5415(a)(1) (2018). Respondent Timothy Boettger was

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convicted for telling the son of a police detective that he “‘was going to end up finding [his] dad in a ditch.’” 310 Kan. 800, 802, 450 P. 3d 805, 807 (2019). Respondent Ryan Johnson was separately convicted for telling his mother that he “‘wish[ed] [she] would die,’” that he would “‘help [her] get there,’” and that he was “‘going to f***ing kill [her] a***.’” 310 Kan. 835, 837, 450 P. 3d 790, 792 (2019). The Kansas Supreme Court overturned both convictions and held that reckless threats are protected by the First Amendment, relying on *Virginia v. Black*, 538 U.S. 343 (2003).

In my view, the Constitution likely permits States to criminalize threats even in the absence of any intent to intimidate. See *Elonis v. United States*, 575 U.S. 723, 760–767 (2015) (dissenting opinion). It appears to follow that threats of violence made in reckless disregard of causing fear may be prohibited. The Kansas Supreme Court reached the opposite conclusion by overreading our decision in *Black*, which did not answer the question presented here. Other courts looking to *Black*, however, have upheld similar statutes. *State v. Taupier*, 330 Conn. 149, 193 A. 3d 1 (2018); *Major v. State*, 301 Ga. 147, 800 S. E. 2d 348 (2017). I would grant the petition for certiorari to resolve the split on this important question.

I

The Fourteenth Amendment provides that “[n]o State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States.” §1. As I have previously explained, “[t]he evidence overwhelmingly demonstrates that the privileges and immunities of such citizens included individual rights enumerated in the Constitution.” *McDonald v. Chicago*, 561 U.S. 742, 823 (2010) (opinion concurring in part and concurring in judgment). One of those rights is “the freedom of speech” in the First Amendment. See, e.g., Cong. Globe, 39th Cong., 1st Sess., 2765 (1866) (speech of Sen. Howard).

It does not appear that the ratifiers of the First or Fourteenth Amendments understood the freedom of speech to protect reckless threats. In 1754, Parliament passed a statute making it a crime to “knowingly send any Letter without any Name subscribed thereto, or signed with a fictitious Name . . . threatening to kill or murder any of his Majesty’s Subject or Subjects, or to burn their [property], though no Money or Venison, or other

valuable Thing shall be demanded.” 27 Geo. 2, ch. 15. English courts interpreted this statute to require what is known today as general intent—“that is, that the defendant posses[s] knowledge with respect to the *actus reus* of the crime.” *Carter v. United States*, 530 U.S. 255, 268 (2000). As the trial court instructed the jurors in one leading case, “if they were of opinion that” the “terms of the letter conveyed an actual threat to kill or murder . . . and that the prisoner knew the contents of it, they ought to find him guilty.” *King v. Girdwood*, 1 Leach 142, 143, 168 Eng. Rep. 173 (1776). Only “if they thought [the defendant] did not know the contents, or that the words might import any thing less than to kill or murder” should they acquit. *Ibid.* The Court of Crown approved this instruction. *Ibid.*, 168 Eng. Rep., at 174; see also *Rex v. Boucher*, 4 Car. & P. 562, 563, 172 Eng. Rep. 826, 827 (N. P. 1831).

More than a dozen States and Territories enacted “copies” of this statute between the founding and Reconstruction. *Elonis*, *supra*, at 761 (THOMAS, J., dissenting). New Jersey, for example, made it a crime to “knowingly send or deliver any letter or writing, with or without a name subscribed thereto, or signed with a fictitious name, . . . threatening to maim, wound, kill or murder any person, or to burn his or her [property], though no money, goods or chattels, or other valuable thing shall be demanded.” 1796 N. J. Laws §57, p. 108; see also Colo. Rev. Stat., ch. 22, § 112 (1868); 1864 Mont. Laws p. 205; 1864 Idaho Sess. Laws ch. 8, § 116; 1860 Pa. Laws p. 390; 1859 Neb. Laws p. 64; 1850 Cal. Stats. ch. 99, § 110; Mo. Rev. Stat. ch. 47, Art. 7, § 16 (1845); 1839 Iowa Acts p. 161; 1832 Fla. Laws § 34, pp. 68–69; 1827 Ill. Laws p. 145; 1816 Mich. Pub. Acts p. 24; 1816 Ga. Laws p. 178. The founding and Reconstruction generations would have understood these statutes to require a mental state of general intent. *Girdwood* and other English decisions were familiar to American lawyers. See, e.g., 7 N. Dane, A General Abridgement and Digest of American Law 31–32 (1824). And “where English statutes . . . have been adopted into our own legislation; the known and settled construction of those statutes by courts of law, has been considered as silently incorporated into the acts, or has been received with all the weight of authority.” *Pennock v. Dialogue*, 2 Pet. 1, 18 (1829); see also *Elonis*, *supra*, at 760–763 (THOMAS, J., dissenting). The prevalence of statutes from the founding through Reconstruction that did not require intent to intimidate provides strong

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evidence of the meaning of the freedom of speech protected by the Fourteenth Amendment.

This evidence is reinforced by the fact that many of these States also guaranteed the freedom of speech in their constitutions. See, *e.g.*, Fla. Const., Art. I, § 5 (1838); Mich. Const., Art. I, § 7 (1835); Mo. Const., Art. XIII, § 16 (1820); Ill. Const., Art. VIII, § 22 (1818); N. J. Const., Art. I, § 5 (1844); Pa. Const., Art. IX, § 7 (1790). If statutes criminalizing reckless threats violated the freedom of speech, one would expect these States not to have such laws, but many of them did. At the very least, one would expect state courts to hold such laws unconstitutional, but it appears that none did. Near the end of the 19th century, one court observed that these laws had “never been supposed to be obnoxious to freedom of speech.” *State v. McCabe*, 135 Mo. 450, 459, 37 S. W. 123, 126 (1896).

Finally, none of this Court’s precedents have held that the First Amendment requires States to include intent to intimidate as an element in criminal threat statutes. The Court’s decision in *Watts v. United States*, 394 U.S. 705 (1969) (*per curiam*), “expressly declined to address the mental state required under the First Amendment for a ‘true threat.’” *Elonis*, 575 U.S., at 765 (THOMAS, J., dissenting). The state statute in *Black* required “intent to intimidate,” Va. Code Ann. § 18.2–423 (1996), so the Court did not decide whether such intent was required to make the law comport with the First Amendment, *Elonis*, 575 U.S., at 765 (THOMAS, J., dissenting).

II

The Kansas Supreme Court, however, concluded that *Black* prohibited the State from criminalizing reckless threats. In reaching that conclusion, the court created a split with the Supreme Courts of Connecticut and Georgia. We should resolve this conflict and provide clear guidance to the lower courts.

In *Black*, a majority of the Court stated in passing that “[t]rue threats’ encompass those statements where the speaker means to communicate a serious expression of an intent to commit an act of unlawful violence to a particular individual or group of individuals.” 538 U.S., at 359. The majority also stated in passing that “[t]he speaker need not actually intend to carry out the threat.” *Id.*, at 359–360. Four Members of the majority added that “[t]he First Amendment does not permit” state law to “ignore all of the contextual factors that are necessary to decide

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whether [an act] is intended to intimidate.” *Id.*, at 367 (plurality opinion).

State courts of last resort have divided over the meaning of this language. The Kansas Supreme Court held the State’s reckless threat statute unconstitutional, relying on *Black*’s statement that “[i]ntimidation in the constitutionally proscribable sense of the word is a type of true threat, where a speaker directs a threat to a person or group of persons with the intent of placing the victim in fear of bodily harm or death.” 310 Kan., at 822, 450 P. 3d, at 818 (quoting *Black*, 538 U. S., at 360; emphasis deleted). But two other state courts of last resort have read *Black* differently. The Supreme Court of Connecticut found that “nothing in *Black* itself suggests that the [C]ourt intended to overrule the preexisting consensus among the federal circuit courts of appeals that threatening speech may be punished under the [F]irst [A]mendment when a reasonable person would interpret the speech as a serious threat.” *Taupier*, 330 Conn., at 173, 193 A. 3d, at 18–19. And the Supreme Court of Georgia likewise read *Black* to allow States to prohibit threats made with reckless disregard. *Major*, 301 Ga., at 151, 800 S. E. 2d, at 352.

This split regarding the mental state required by the First Amendment for these offenses will only deepen with time. Sixteen States and the District of Columbia filed an *amicus* brief representing that numerous statutes would be subject to challenge under the reasoning of the Supreme Court of Kansas. Brief for Virginia et al. as *Amici Curiae* 11–12. If state high courts hold even a fraction of these statutes unconstitutional, we will have no choice but to intervene. I would do so now to address the problem caused by our language in *Black*.

* * *

The decisions in these cases—and the split among state courts of last resort—resulted from the lack of clarity in *Black*. Because the Court should squarely decide whether the Constitution permits States to criminalize threats of violence made in reckless disregard of causing fear, I respectfully dissent from the denial of certiorari.

No. 19–1097. ENZO LIFE SCIENCES, INC. *v.* BECTON, DICKINSON & CO. ET AL. C. A. Fed. Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 780 Fed. Appx. 903.

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No. 19–8506. *WARD v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 19–8540. *SPENCER ET AL. v. UNITED STATES*. C. A. 8th Cir. Certiorari before judgment denied.

No. 19–8548. *HARRISON v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 785 Fed. Appx. 534.

Rehearing Denied

No. 18–9554. *IN RE ALLEN*, 590 U. S. 941;

No. 19–955. *HIRSHAUER v. AQ HOLDINGS, LLC, ET AL.*, 589 U. S. 1295;

No. 19–6961. *NAVARRO v. UNITED STATES*, 589 U. S. 1184;

No. 19–7349. *OSORNIO v. SUPREME COURT OF THE UNITED STATES ET AL.*, 589 U. S. 1282;

No. 19–7405. *GRANT v. WILLIAMS*, 589 U. S. 1296;

No. 19–7461. *CHEEKS v. JOYNER*, 589 U. S. 1297;

No. 19–7576. *DAVIS v. ANGLETON INDEPENDENT SCHOOL DISTRICT ET AL.*, 589 U. S. 1298;

No. 19–7749. *BRIDGES v. GRAY, WARDEN*, 589 U. S. 1288; and

No. 19–8148. *COLE v. UNITED STATES*, 590 U. S. 927. Petitions for rehearing denied.

JUNE 25, 2020

Miscellaneous Order

No. 19A1054. *THOMPSON ET AL. v. DEWINE, GOVERNOR OF OHIO, ET AL.* C. A. 6th Cir. Application to vacate stay, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, denied.

JUNE 26, 2020

Miscellaneous Order

No. 19A1055. *TEXAS DEMOCRATIC PARTY ET AL. v. ABBOTT, GOVERNOR OF TEXAS, ET AL.* C. A. 5th Cir. Application to vacate stay, presented to JUSTICE ALITO, and by him referred to the Court, denied.

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Statement of JUSTICE SOTOMAYOR respecting the denial of application to vacate stay.

This application raises weighty but seemingly novel questions regarding the Twenty-sixth Amendment. I do not disagree with the decision to refrain from addressing them for the first time here, in the context of an emergency application to vacate a stay of an injunction. But I hope that the Court of Appeals will consider the merits of the legal issues in this case well in advance of the November election.

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Certiorari Dismissed

No. 19–8585. JACKSON *v.* UNITED STATES. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court’s Rule 39.8.

Miscellaneous Orders

No. 19A1045. BUGARENKO *v.* BARR, ATTORNEY GENERAL. Application for stay of removal, addressed to JUSTICE SOTOMAYOR and referred to the Court, denied.

No. 19M149. SCHUBERT *v.* UNITED STATES. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 19–1039. PENNEAST PIPELINE CO., LLC *v.* NEW JERSEY ET AL. C. A. 3d Cir.; and

No. 19–1143. FMC CORP. *v.* SHOSHONE-BANNOCK TRIBES. The Solicitor General is invited to file briefs in these cases expressing the views of the United States.

No. 19–7905. ARUNACHALAM *v.* EXXON MOBIL CORP. C. A. 5th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [590 U. S. 940] denied.

No. 19–7910. ARUNACHALAM *v.* INTUIT, INC. C. A. 5th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [590 U. S. 940] denied.

No. 19–8029. ARUNACHALAM *v.* LYFT, INC. C. A. 5th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [590 U. S. 941] denied. THE CHIEF JUSTICE took no part in the consideration or decision of this motion.

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No. 19–8059. ARUNACHALAM *v.* UBER TECHNOLOGIES, INC. C. A. 5th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [590 U.S. 957] denied.

No. 19–8374. IN RE SIMS. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until July 20, 2020, within which to pay the docketing fee required by this Court’s Rule 38(a).

No. 19–8626. IN RE DECARLO. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of habeas corpus dismissed. See this Court’s Rule 39.8.

Certiorari Denied

No. 18–1469. DEPARTMENT OF HOMELAND SECURITY ET AL. *v.* CASA DE MARYLAND ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 924 F. 3d 684.

No. 19–185. MUTOND ET AL. *v.* LEWIS. C. A. D. C. Cir. Certiorari denied. Reported below: 918 F. 3d 142.

No. 19–638. N. B. D. *v.* KENTUCKY CABINET FOR HEALTH AND FAMILY SERVICES. Sup. Ct. Ky. Certiorari denied.

No. 19–673. LUNA-GARCIA *v.* BARR, ATTORNEY GENERAL. C. A. 5th Cir. Certiorari denied. Reported below: 932 F. 3d 285.

No. 19–814. MCCOY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 164.

No. 19–874. PESNELL ET AL. *v.* SESSIONS ET AL. Ct. App. La., 2d Cir. Certiorari denied. Reported below: 52,646 (La. App. 2 Cir. 5/22/19), 274 So. 3d 697.

No. 19–933. MONEX DEPOSIT CO. ET AL. *v.* COMMODITY FUTURES TRADING COMMISSION. C. A. 9th Cir. Certiorari denied. Reported below: 931 F. 3d 966.

No. 19–975. CENTER FOR BIOLOGICAL DIVERSITY ET AL. *v.* WOLF, ACTING SECRETARY OF HOMELAND SECURITY, ET AL. D. C. D. C. Certiorari denied.

No. 19–1022. MATTHEWS *v.* BARR, ATTORNEY GENERAL. C. A. 2d Cir. Certiorari denied.

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No. 19–1035. *ROSE v. SELECT PORTFOLIO SERVICING, INC., ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 945 F. 3d 226.

No. 19–1059. *HAMM ET VIR v. TENNESSEE.* Sup. Ct. Tenn. Certiorari denied. Reported below: 589 S. W. 3d 765.

No. 19–1082. *LINDER v. UNITED STATES.* C. A. 7th Cir. Certiorari denied. Reported below: 937 F. 3d 1087.

No. 19–1087. *HALLINAN v. UNITED STATES.* C. A. 3d Cir. Certiorari denied. Reported below: 787 Fed. Appx. 81.

No. 19–1100. *CROPPER v. ARIZONA.* Super. Ct. Ariz., Maricopa County. Certiorari denied.

No. 19–1115. *AMERICAN BANKERS ASSN. v. NATIONAL CREDIT UNION ADMINISTRATION.* C. A. D. C. Cir. Certiorari denied. Reported below: 934 F. 3d 649.

No. 19–1121. *WELSH v. FORT BEND INDEPENDENT SCHOOL DISTRICT.* C. A. 5th Cir. Certiorari denied. Reported below: 941 F. 3d 818.

No. 19–1123. *LECH ET AL. v. JACKSON, CHIEF OF POLICE, GREENWOOD VILLAGE, COLORADO, ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 791 Fed. Appx. 711.

No. 19–1124. *CHIRIMAR SYSTEMS, INC., DBA CMS TECHNOLOGIES, INC., ET AL. v. ALE USA INC. ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 785 Fed. Appx. 854.

No. 19–1145. *NG LAP SENG v. UNITED STATES.* C. A. 2d Cir. Certiorari denied. Reported below: 934 F. 3d 110.

No. 19–1154. *ROBINSON NURSING AND REHABILITATION CENTER, LLC, ET AL. v. PHILLIPS, AS PERSONAL REPRESENTATIVE OF THE ESTATE OF PHILLIPS, ET AL.* Sup. Ct. Ark. Certiorari denied. Reported below: 2019 Ark. 305, 586 S. W. 3d 624.

No. 19–1158. *AIRBUS HELICOPTERS, INC. v. RIGGS ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 939 F. 3d 981.

No. 19–1166. *DINE CITIZENS AGAINST RUINING OUR ENVIRONMENT ET AL. v. BUREAU OF INDIAN AFFAIRS ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 932 F. 3d 843.

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No. 19–1195. *PALACIOS-SOLIS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 949 F. 3d 567.

No. 19–1214. *FRIEND v. INDIANA*. Ct. App. Ind. Certiorari denied. Reported below: 134 N. E. 3d 441.

No. 19–1244. *JOHNSON v. STORIX, INC.* C. A. 9th Cir. Certiorari denied. Reported below: 792 Fed. Appx. 501.

No. 19–1249. *DAVIS v. ECHO VALLEY CONDOMINIUM ASSN. ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 945 F. 3d 483.

No. 19–1250. *CLARK v. CELEBRITY CRUISES, INC., ET AL.* Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 271 So. 3d 1169.

No. 19–1263. *THOMPSON v. CHICAGO BOARD OF EDUCATION ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 790 Fed. Appx. 811.

No. 19–1268. *SPRINGER ET AL. v. WELLS FARGO BANK, N. A., ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 784 Fed. Appx. 721.

No. 19–1270. *FODGE ET AL. v. TRUSTMARK NATIONAL BANK ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 945 F. 3d 880.

No. 19–1274. *ARNOLD v. SLATERY, ATTORNEY GENERAL OF TENNESSEE*. C. A. 6th Cir. Certiorari denied.

No. 19–1275. *THOMAS v. BLOCKER ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 799 Fed. Appx. 131.

No. 19–1308. *MORELLO ET AL. v. SEAWAY CRUDE PIPELINE Co., LLC*. Ct. App. Tex., 1st Dist. Certiorari denied. Reported below: 585 S. W. 3d 1.

No. 19–1333. *MONSTER ENERGY Co., FKA HANSEN BEVERAGE Co. v. CITY BEVERAGES LLC, DBA OLYMPIC EAGLE DISTRIBUTING*. C. A. 9th Cir. Certiorari denied. Reported below: 940 F. 3d 1130.

No. 19–1345. *BUTCHER v. VISHNIAC*. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 483 Mass. 742, 136 N. E. 3d 719.

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No. 19–7487. *BLADES v. UNITED STATES*. Ct. App. D. C. Certiorari denied. Reported below: 200 A. 3d 230.

No. 19–7603. *JENSEN v. POLLARD*. C. A. 7th Cir. Certiorari denied. Reported below: 924 F. 3d 451.

No. 19–7674. *CLARK v. LINDSAY, WARDEN*. C. A. 6th Cir. Certiorari denied. Reported below: 936 F. 3d 467.

No. 19–7753. *PINEDA-FERNANDEZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 252.

No. 19–7780. *HARPER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 792 Fed. Appx. 385.

No. 19–7821. *CANTU-SIGUERO v. UNITED STATES* (Reported below: 794 Fed. Appx. 424); *GOMEZ-LOPEZ, AKA ANTONIO TRUJILLO, AKA ESCALANTE v. UNITED STATES* (789 Fed. Appx. 494); *GUTIERREZ-MURILLO v. UNITED STATES* (793 Fed. Appx. 302); *HERNANDEZ CASTELLANOS v. UNITED STATES* (792 Fed. Appx. 352); *PALACIOS GUEVARA v. UNITED STATES* (791 Fed. Appx. 508); *PALOMEQUE-RAMOS, AKA LOPEZ v. UNITED STATES* (791 Fed. Appx. 501); *VARGOS CASTRO v. UNITED STATES* (791 Fed. Appx. 507); *ZARATE-HERNANDEZ v. UNITED STATES* (792 Fed. Appx. 336); and *TREVINO-VILLARREAL v. UNITED STATES* (793 Fed. Appx. 353). C. A. 5th Cir. Certiorari denied.

No. 19–7996. *MAYORGA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 787 Fed. Appx. 263.

No. 19–8043. *STEWART v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 793 Fed. Appx. 188.

No. 19–8045. *MATA v. NEBRASKA*. Sup. Ct. Neb. Certiorari denied. Reported below: 304 Neb. 326, 934 N. W. 2d 475.

No. 19–8061. *WEIXING WANG v. MARCOTTE*. Sup. Ct. N. H. Certiorari denied.

No. 19–8090. *SMITH v. NEVADA*. Sup. Ct. Nev. Certiorari denied. Reported below: 135 Nev. 718, 449 P. 3d 460.

No. 19–8107. *GUZMAN-IBAREZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 789 Fed. Appx. 588.

No. 19–8175. *POWELL v. NEVADA*. Sup. Ct. Nev. Certiorari denied. Reported below: 135 Nev. 702, 448 P. 3d 552.

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No. 19–8192. *BEJARANO v. GITTERE, WARDEN, ET AL.* Sup. Ct. Nev. Certiorari denied. Reported below: 135 Nev. 613, 448 P. 3d 551.

No. 19–8239. *YBARRA v. GITTERE, WARDEN, ET AL.* Sup. Ct. Nev. Certiorari denied. Reported below: 135 Nev. 740, 448 P. 3d 551.

No. 19–8317. *TAEDEL v. DUCEY, GOVERNOR OF ARIZONA, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–8330. *SPATARU v. FLORIDA DEPARTMENT OF TRANSPORTATION ET AL.* Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 275 So. 3d 248.

No. 19–8335. *WILLOUGHBY v. HART, WARDEN.* C. A. 6th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 506.

No. 19–8346. *JONES v. CAPOZZA, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT FAYETTE, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–8347. *DANIELS v. VIRGINIA.* Sup. Ct. Va. Certiorari denied.

No. 19–8348. *KEHANO v. HARRINGTON, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 787 Fed. Appx. 964.

No. 19–8349. *CHAREST v. STANKOSKI, JUDGE, CIRCUIT COURT OF ALABAMA, BALDWIN COUNTY.* Sup. Ct. Ala. Certiorari denied.

No. 19–8352. *K. S. v. PRICE ET AL.* Super. Ct. Pa. Certiorari denied. Reported below: 222 A. 3d 817.

No. 19–8354. *ROMERO v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION.* C. A. 5th Cir. Certiorari denied.

No. 19–8355. *RAY v. STITT, GOVERNOR OF OKLAHOMA.* Ct. Civ. App. Okla. Certiorari denied.

No. 19–8356. *LOGAN ET AL. v. LOGAN.* Ct. App. Tex., 2d Dist. Certiorari denied.

No. 19–8357. *LOUT v. MONTANA.* Sup. Ct. Mont. Certiorari denied. Reported below: 398 Mont. 447, 455 P. 3d 457.

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No. 19–8358. *MEADS v. ILLINOIS*. App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 2019 IL App (4th) 170229–U.

No. 19–8359. *PHILLIPS v. SHERMAN, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 19–8367. *COLEMAN v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 19–8368. *GITTENS v. TRANSFORCE, INC.* C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 168.

No. 19–8370. *FISHER v. WALGREEN Co.* C. A. 4th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 61.

No. 19–8372. *ISMAIYL v. NUGENT*. C. A. 6th Cir. Certiorari denied.

No. 19–8373. *ROQUE v. ARIZONA*. Ct. App. Ariz. Certiorari denied.

No. 19–8377. *KNIGHT v. MONTEREY COUNTY, CALIFORNIA*. C. A. 9th Cir. Certiorari denied.

No. 19–8395. *GAKUBA v. O'BRIEN ET AL.* C. A. 7th Cir. Certiorari denied.

No. 19–8397. *LOCKHART v. NORTH CAROLINA*. Sup. Ct. N. C. Certiorari denied.

No. 19–8402. *PACCHIANA v. FLORIDA*. Sup. Ct. Fla. Certiorari denied. Reported below: 289 So. 3d 857.

No. 19–8406. *SHAHADDAH v. GOTCHER ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 792 Fed. Appx. 277.

No. 19–8408. *McPHERSON v. TOMPKINS TRUST CO. ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 792 Fed. Appx. 142.

No. 19–8410. *PINNEY v. PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION*. C. A. 8th Cir. Certiorari denied.

No. 19–8417. *STONE v. KENTUCKY*. Sup. Ct. Ky. Certiorari denied.

No. 19–8426. *TWITTY v. INDIANA*. Ct. App. Ind. Certiorari denied. Reported below: 138 N. E. 3d 974.

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No. 19–8497. *LYMAN v. KANSAS*. Sup. Ct. Kan. Certiorari denied. Reported below: 311 Kan. 1, 455 P. 3d 393.

No. 19–8520. *MOHN v. PROGRESSIVE INSURANCE*. C. A. 10th Cir. Certiorari denied. Reported below: 802 Fed. Appx. 391.

No. 19–8523. *JAMES v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 800 Fed. Appx. 290.

No. 19–8524. *COKER v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 794 Fed. Appx. 341.

No. 19–8525. *GABRIEL DIAZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 792 Fed. Appx. 491.

No. 19–8542. *BROWN v. NEVADA ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 798 Fed. Appx. 76.

No. 19–8555. *TROIANO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–8557. *DORSETT v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 19–8559. *JEPSEN v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 944 F. 3d 1019.

No. 19–8562. *ROSENBLATT v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 960.

No. 19–8563. *LEE v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–8564. *OJEDA v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 951 F. 3d 66.

No. 19–8566. *THOMPSON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 794 Fed. Appx. 350.

No. 19–8567. *TAYLOR v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 789 Fed. Appx. 52.

No. 19–8568. *THORPE v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 803 Fed. Appx. 691.

No. 19–8569. *WILSON v. UNITED STATES*. C. A. 7th Cir. Certiorari denied.

No. 19–8570. *VEGA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 794 Fed. Appx. 918.

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No. 19–8572. *CHAMBERS v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 993.

No. 19–8576. *ROBINSON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 200.

No. 19–8579. *DAVIS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 374.

No. 19–8582. *EDWARDS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–8584. *KIDD v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 796 Fed. Appx. 221.

No. 19–8586. *RAMIREZ v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 521.

No. 19–8589. *ACOSTA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–8603. *WHITE v. INTERNAL REVENUE SERVICE*. C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 168.

No. 19–1026. *FORD MOTOR CO. v. UNITED STATES*. C. A. Fed. Cir. Motion of American Association of Exporters and Importers for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 926 F. 3d 741.

No. 19–1251. *ARMSTRONG v. SCHOOL DISTRICT OF PHILADELPHIA ET AL.* C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 19–1259. *LOUMIET v. UNITED STATES ET AL.* C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 948 F. 3d 376.

No. 19–1348 (19A1050). *BOURGEOIS ET AL. v. BARR, ATTORNEY GENERAL, ET AL.* C. A. D. C. Cir. Application for stay of mandate pending disposition of the petition for writ of certiorari, presented to THE CHIEF JUSTICE and referred to the Court, denied. Certiorari denied. JUSTICE GINSBURG and JUSTICE SOTOMAYOR would grant the application and the petition for writ of certiorari. Reported below: 955 F. 3d 106.

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No. 19–8350. *DESMOND v. DELAWARE*. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 792 Fed. Appx. 241.

Rehearing Denied

No. 19–6483. *ROBINSON v. MASON, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT RETREAT*, 589 U. S. 1147;

No. 19–6963. *PRENATT v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.*, 589 U. S. 1216;

No. 19–7337. *PALMER v. UNITED STATES*, 589 U. S. 1228;

No. 19–7556. *JACOBS v. MARICOPA INTEGRATED HEALTH CARE SYSTEM*, 589 U. S. 1307;

No. 19–7644. *JONES v. GRIFFITH, WARDEN*, 589 U. S. 1308;

No. 19–7673. *EL BEY, FKA WARREN v. WEAVER ET AL.*, 590 U. S. 908;

No. 19–7678. *EL BEY, FKA WARREN v. DOUGHTERY COUNTY STATE COURT ET AL.*, 590 U. S. 909;

No. 19–7679. *BROWNLEE v. HEARNS ET AL.*, 589 U. S. 1308;

No. 19–7693. *MILLS v. SAUL, COMMISSIONER OF SOCIAL SECURITY*, 590 U. S. 931;

No. 19–7697. *LOVELL v. CHILDREN’S CORNER DAYCARE*, 589 U. S. 1287;

No. 19–7701. *KERNS v. WENNER*, 590 U. S. 924;

No. 19–7702. *JACKSON v. BEREAN ET AL.*, 590 U. S. 924;

No. 19–7727. *IN RE DAVIS*, 590 U. S. 922;

No. 19–7968. *NDOROMO v. BARR, ATTORNEY GENERAL, ET AL.*, 590 U. S. 947;

No. 19–8011. *DELLINGER v. TENNESSEE*, 590 U. S. 948; and

No. 19–8067. *MOHAMMED v. DUPAGE LEGAL ASSISTANCE FOUNDATION ET AL.*, 590 U. S. 926. Petitions for rehearing denied.

No. 19–7625. *SWINTON v. FLORIDA*, 589 U. S. 1286. Motion for leave to file petition for rehearing denied.